

The complaint

Mr S complains that Royal & Sun Alliance Insurance Plc (RSA) has turned down a storm damage claim he made on his home insurance policy.

What happened

In September 2019, following a period of bad weather, Mr S made a claim on his home insurance policy. He'd suffered roof damage and internal damage at his home.

RSA appointed a surveyor to inspect the damage at Mr S' home. The surveyor didn't look at the internal damage, but he took photos of the roof damage. He didn't think the roof damage was down to storm – but was instead caused by nail fatigue.

Based on the surveyor's opinion, RSA turned down the claim. It concluded the damage was down to wear and tear, which is specifically excluded by the policy terms. And it'd checked local weather records around the time of Mr S' claim and didn't think there'd been storm conditions. It also added that Mr S didn't have accidental damage cover, so it couldn't consider the internal damage under that section of the policy.

Mr S was unhappy with RSA's decision. And he was also unhappy with the service he'd had from it. RSA accepted it hadn't called Mr S back at points and he'd experienced long wait times. So it paid him £50 compensation to recognise this. But it maintained that Mr S' claim wasn't covered. Mr S asked us to look into his complaint.

Our investigator thought it was fair for RSA to turn down Mr S' claim. He didn't think there were storm conditions in Mr S' area around the time of the claim. And he thought, in the absence of any expert evidence to counter the surveyor's findings, it was fair for RSA to rely on them.

Mr S disagreed. He said his roof was 80 years old and wasn't likely to be in an immaculate condition. And he suggested that his roof could've experienced storm damage any number of times during the period he'd been insured with RSA.

The complaint's been passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I think it was fair to RSA to turn down Mr S' claim. I'll explain why.

When we look at complaints about storm damage, there are three questions that we need to ask:

- Were there storm conditions on or around the date of the claim?

- Is the damage consistent with storm damage?
- Were the storm conditions the main cause of the damage?

If the answer to any of these questions is “no” then the claim won’t succeed.

Were there storm conditions on or around the date of the claim?

RSA hasn’t defined what it means by a ‘storm’ in its policy. Where an insurer hasn’t included a definition of what a storm is in its policy wording, we’d generally say that a storm involves violent winds, usually accompanied by rain, hail or snow. So this is what I’ve thought about when deciding whether there were storm conditions on or around the date of Mr S’ claim.

Mr S says there were terrible weather conditions on 28 and 29 September 2019. So I’ve carefully considered local weather reports for a few weeks around that time to see if there were prevailing storm conditions. I can see there were periods of rainfall and occasional gusts of wind. But there was nothing shortly before the claim to suggest there were violent winds, accompanied by rain, hail or snow.

So I turned to look at the weather report for the week the claim was made. I can see that the highest wind speed was 32 mph. While these might be reasonably strong winds, I don’t think they’re high enough to be considered as storm conditions.

The highest recorded rainfall over a 24-hour period on 29 September 2019 was 24mm. I accept this is heavy rainfall. But it doesn’t look like storm force winds accompanied it. And without strong winds, I’m not persuaded that the rainfall was of sufficient intensity to be considered as a storm. Or that rainfall on its own would be capable of damaging a well-maintained roof.

Having considered the evidence, I don’t think there were storm conditions on or around the date of the claim. This means the answer to the first question is ‘no’.

I appreciate Mr S feels that the damage could’ve happened during any storm while he’s been insured with RSA. Mr S’ policy is intended to cover a one-off event of storm which has caused damage which can be attributed to that storm. In this case, because there weren’t prevailing storm conditions when Mr S noticed the internal and external damage, I think it’s fair for RSA to conclude the damage wasn’t down to a one-off event of storm. And as Mr S doesn’t have accidental damage cover on his policy, RSA can’t consider his internal or external damage claim under this section either.

As there weren’t storm conditions at the time of the claim, I don’t strictly need to consider the other questions. For completeness though, I would add that based on the surveyor’s expert findings, it seems the roof damage was caused by the corrosion of nails in the roof, rather than storm. While Mr S was unhappy with the surveyor’s findings, he hasn’t provided any expert evidence which would counter them. And I’ve noted in his complaint to us that Mr S said his own roofer told him *‘the roof was in a really bad way and it would need replacing.’* He also mentioned that his roofer had said there was a lot of rotten wood. He’s told us the roof was also 80 years old. It seems likely that the issues were more likely to be down to general wear and tear. General roof maintenance simply isn’t covered by the policy terms.

Overall, while I sympathise with Mr S’ position, given the impact he said the damage has had on his health, I think it was fair for RSA to turn down Mr S’ claim. So I don’t think RSA needs to pay anything more.

My final decision

For the reasons I've given above, my final decision is that I don't uphold Mr S' complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr S to accept or reject my decision before 11 January 2021.

Lisa Barham
Ombudsman